

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

SUMMONS

PATRICK SANDER,

Plaintiff(s),

Index No.:

-against-

Date filed:

CITY OF NEW YORK, NICHOLAS SANTOMERO, JOHN
DOE 1 AND JOHN DOE 2 being the fictitious names of
Police Officers of the New York City Police Department,
Defendant(s).

-----X

TO THE ABOVE NAMED DEFENDANT(s):

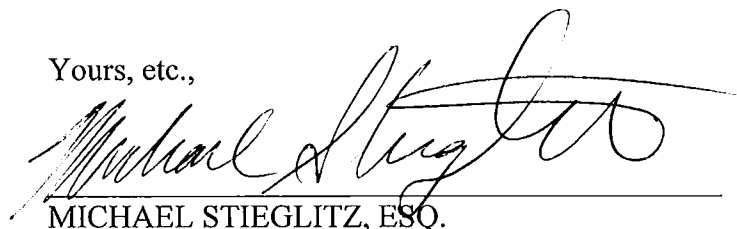
YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of venue is the location of the occurrence pursuant to CPLR §504(3).

The location of the occurrence is Wakefield Area in Bronx at or near 241st Street, County of Bronx, City and State of New York.

Dated: Westchester, New York
July 20, 2018

Yours, etc.,



MICHAEL STIEGLITZ, ESQ.
SCOTT BARON & ASSOCIATES, P.C.
Attorney for Plaintiff(s)
159-45 Cross Bay Boulevard
Howard Beach, New York 11414
(718) 738-9800
File # 17-10750

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
PATRICK SANDER,

Plaintiff(s),

-against-

CITY OF NEW YORK, NICHOLAS SANTOMERO, JOHN
DOE 1 AND JOHN DOE 2 being the fictitious names of
Police Officers of the New York City Police Department,

Defendant(s).
-----X

**VERIFIED
COMPLAINT**

Index No.:

Plaintiff, by his attorney, SCOTT BARON & ASSOCIATES, P.C., as and for a cause of
action, complaining of the defendants herein, respectfully show(s) to this Court and alleges upon
information and belief as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER**

1. At the time of the commencement of this action, plaintiff was a resident of the
County of Westchester, State of New York.
2. That the cause of action alleged herein arose in the County of Bronx, City and State
of New York.
3. That this action falls within one or more of the exemptions set forth in CPLR §1602.
4. That on September 24, 2017 and at all the times herein mentioned, the defendant
THE CITY OF NEW YORK (hereinafter, "NYC") was and still is a municipal corporation, duly
organized and existing under and by virtue of the laws of the State of New York.
5. That prior hereto on October 30, 2017 and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries and

damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than ninety (90) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on January 31, 2018, a statutory hearing was held pursuant to section 50 (h) of the General Municipal Law.

7. That on September 24, 2017, the defendant NYC operated a police force known as the NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as the "NYPD".

8. That on September 24, 2017, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2 were employed by the NYPD at the 47th Precinct located in Bronx, New York.

9. That on or about September 24, 2017 and at all times hereinafter mentioned, the defendant NYC employed the officers, policemen, agents, servants, and assistants, and others hereinafter mentioned in this complaint.

10. That on or about September 24, 2017, the plaintiff was lawfully at or near 241th Street and White Plains Road, Bronx, New York.

11. That on or about September 24, 2017, while plaintiff was lawfully at or near the aforementioned location, plaintiff was falsely arrested by defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, their agents, servants, and/or employees.

12. That on or about September 24, 2017 and at all times hereinafter mentioned, the defendant NYC employed the officers, policemen, agents, servants, and assistants, and others hereinafter mentioned in this complaint.

13. That the aforementioned arrest of the plaintiff was illegal and without authority of law.

14. That the aforementioned arrest of the plaintiff was without probable cause.

15. That on or about September 24, 2017, plaintiff was falsely arrested, falsely detained, falsely imprisoned, wrongfully taken into custody, and improperly and excessively searched by

reason of the negligence of the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, and their agents servants and/or employees in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force against plaintiff; in hiring and employing law enforcement personnel who make arrests without probable cause therefor; in allowing or permitting its personnel to improperly effectuate arrest; in failing to have its personnel properly assess the circumstances before making an arrest; in failing to properly supervise their officers; the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants and/or employees had no reasonable cause to believe that plaintiff committed alleged crimes under the facts and circumstances of this case; the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants and/or employees failed to act as reasonably prudent persons would have acted under the circumstances in spite of their knowledge, both actual and constructive, that plaintiff did not commit a crime; in failing to investigate the facts and circumstances surrounding this incident; in failing to properly investigate the facts and circumstances surrounding this incident; in failing to hire competent and skilled Police and/or Peace Officers; in improperly training their Police and/or Peace Officers; in failing to exercise reasonable care in the selection of Police and/or Peace Officers; in allowing Police and/or Peace Officers to continue working as Police and/or Peace Officers when defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants, and/or employees knew or, in the exercise of reasonable care, should have known that they were not competent to perform their duties; and the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, and their agents, servants, and/or employees were otherwise careless, reckless, and negligent in the circumstances.

16. That as a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired; plaintiff suffered great mental distress; plaintiff's reputation and character were injured; plaintiff's earning power has been permanently impaired, all to the plaintiff's damage in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

17. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

18. That following the plaintiff's illegal arrest and imprisonment commencing on or about September 24, 2017, plaintiff was maliciously prosecuted by the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants, and/or employees and required to be present in the Bronx Criminal Court approximately one time.

19. That the malicious prosecution of the plaintiff was due to the negligence of the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, and their agents servants and/or employees in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force against plaintiff; in hiring and employing law enforcement personnel who make arrests without probable cause; in allowing or permitting its personnel to improperly effectuate arrest; in failing to have its personnel properly assess the circumstances before making an arrest; in failing to properly supervise their officers; the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants and/or employees had no reasonable cause to believe that plaintiff committed alleged crimes under the facts and circumstances of this case; the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants and/or employees failed to act as reasonably prudent persons would have acted under the circumstances in spite of their knowledge, both actual and constructive, that plaintiff did not commit a crime; in failing to investigate the facts and circumstances surrounding this incident; in failing to properly investigate the facts and circumstances surrounding this incident; in failing to hire competent and skilled Police and/or Peace Officers; in improperly training their Police and/or Peace Officers; in failing to exercise

reasonable care in the selection of Police and/or Peace Officers; in allowing Police and/or Peace Officers to continue working as Police and/or Peace Officers when defendant NYC and the NYPD knew or, in the exercise of reasonable care, should have known that they were not competent to perform their duties; and the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants, and/or employees were otherwise careless, reckless, and negligent in the circumstances.

20. That as a result of the malicious prosecution which the plaintiff suffered, plaintiff's health was impaired; plaintiff suffered great mental distress; plaintiff's reputation and character were injured; plaintiff's earning power has been permanently impaired, all to the plaintiff's damage in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

21. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

22. That the foregoing false arrest, false imprisonment, and malicious prosecution of the plaintiff were due to the intentional, willful, wanton, and malicious false arrest, physical detention, verbal and physical abuse and deprivation of the civil rights of plaintiff by the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants, and/or employees; the intentional use of unbridled discretion in the false arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of plaintiff; in failing to guard against the false arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of members of the public, including plaintiff; in exercising the use of excessive police power and authority such that plaintiff was physically assaulted, abused and detained, falsely arrested, verbally abused and deprived of his civil rights; in failing to act with reasonable prudence in the use of police power and authority so as to avoid

the improper arrest, assault, abuse and detention of innocent persons; in physically assaulting plaintiff; in knowingly arresting plaintiff without a warrant; in forcibly detaining, falsely arresting and depriving plaintiff of his freedoms and constitutional and civil rights while acting in the scope of their authority and within the scope and in the furtherance of their employment; in knowingly violating, consciously ignoring and failing to adhere to and properly follow accepted guidelines and standards; in knowingly failing to exercise due care and proper professional judgment under the circumstances then and there prevailing at the time of the occurrence; in continuing to detain plaintiff after defendants learned of or should have learned of the unlawfulness, falsity and lack of probable cause for plaintiff's arrest and imprisonment; in allowing the life and safety of plaintiff to be unreasonably placed in jeopardy while falsely imprisoned; in failing to protect the life and safety of plaintiff while falsely imprisoned; in permitting the wrongful, willful, malicious and grossly negligent false arrest, verbal abuse and physical assault, physical detention and deprivation of the civil rights of the plaintiff without probable cause for the means of harassment of plaintiff; in deliberately, intentionally, maliciously, willfully harassing plaintiff; in deliberately, intentionally, maliciously, willfully and with gross negligence physically and forcibly detaining, verbally abusing, physically assaulting, falsely arresting and depriving plaintiff of his freedoms and constitutional and civil rights while acting under the guise and under the scope of their authority and within the scope and in the furtherance of their employment; in intentionally failing to act with reasonable prudence to prevent the false arrest, physical assault, detention and deprivation of the civil rights of plaintiff; in intentionally violating and failing to adhere to and properly follow guidelines and standards used; in willfully, intentionally, and wantonly violating and failing to adhere to and properly follow good and accepted guidelines and standards of police work then and there prevailing at the time of the occurrence.

23. That the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, the NYPD, their agents, servants, and/or employees caused and created the foregoing conditions intentionally.

24. That as a result of the foregoing, plaintiff's health was impaired; plaintiff suffered great mental distress; plaintiff's reputation and character were injured; plaintiff's earning power has been permanently impaired, all to the plaintiff's damage in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

25. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

26. That on or about September 24, 2017, defendant(s) NICHOLAS SANTOMERO is and was a resident of the State of New York.

27. That on or about September 24, 2017, defendant NICHOLAS SANTOMERO is and was employed by the defendant NYC and/or NYPD.

28. That on or about September 24, 2017 and at all times hereinafter mentioned, defendant NICHOLAS SANTOMERO was, at all relevant times, an employee of the NYPD at the 47th Precinct.

29. That on or about September 24, 2017, defendant NICHOLAS SANTOMERO was, at all relevant times, inside, at, about, in front of and near the aforementioned location with the knowledge, permission, and consent of the defendant NYC and/or NYPD.

30. That on or about September 24, 2017, defendant NICHOLAS SANTOMERO was, at all relevant times, inside, at, about, in front of and near the aforementioned location at the behest and direction of the defendant NYC and/or NYPD.

31. That on or about September 24, 2017, defendant NICHOLAS SANTOMERO

was one of the arresting officers/personnel of defendant NYC and/or NYPD who arrested plaintiff at or near the aforesaid location.

32. That on or about September 24, 2017, while plaintiff was lawfully at the aforesaid location, defendant NICHOLAS SANTOMERO without justification, cause or provocation, willfully, wantonly, maliciously and unlawfully assaulted and struck plaintiff about the head and body both before and after being placed in handcuffs and while posing no danger to himself or others, causing bilateral wrist grooves; left hand numbness and tingling; lacerations with resultant scarring and bruising, concussion and other bodily injuries, causing permanent personal injuries to the plaintiff.

33. The assaults by NICHOLAS SANTOMERO on plaintiff as aforesaid were excessive, malicious, wanton and reckless and were intended to cause severe physical and emotional harm to plaintiff.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

34. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

35. That on or about September 24, 2017, defendant(s) JOHN DOE 1 is and was a resident of the State of New York.

36. That on or about September 24, 2017, defendant JOHN DOE 1 is and was employed by the defendant NYC and/or NYPD.

37. That on or about September 24, 2017 and at all times hereinafter mentioned, defendant JOHN DOE 1 was, at all relevant times, an employee of the NYPD at the 47th Precinct.

38. That on or about September 24, 2017, defendant JOHN DOE 1 was, at all relevant times, inside, at, about, in front of and near the aforementioned location with the knowledge, permission, and consent of the defendant NYC and/or NYPD.

39. That on or about September 24, 2017, defendant JOHN DOE 1 was, at all relevant times, inside, at, about, in front of and near the aforementioned location at the behest and direction of the defendant NYC and/or NYPD.

40. That on or about September 24, 2017, defendant JOHN DOE 1 was one of the arresting officers/personnel of defendant NYC and/or NYPD who arrested plaintiff at or near the aforesaid location.

41. That on or about September 24, 2017, while plaintiff was lawfully at the aforesaid location, defendant JOHN DOE 1 without justification, cause or provocation, willfully, wantonly, maliciously and unlawfully assaulted and struck plaintiff both before and after he was placed in handcuffs and posed no danger to himself or others, causing bilateral wrist grooves; left hand numbness and tingling; lacerations with resultant scarring and bruising and concussion, causing permanent personal injuries to the plaintiff.

42. The assaults of JOHN DOE 1 on plaintiff as aforesaid were excessive, malicious, wanton and reckless and were intended to cause severe physical and emotional harm to plaintiff.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER**

43. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

44. That on or about September 24, 2017, defendant(s) JOHN DOE 2 is and was a

resident of the State of New York.

45. That on or about September 24, 2017, defendant JOHN DOE 2 is and was employed by the defendant NYC and/or NYPD.

46. That on or about September 24, 2017 and at all times hereinafter mentioned, defendant JOHN DOE 2 was, at all relevant times, an employee of the NYPD at the 47th Precinct.

47. That on or about September 24, 2017, defendant JOHN DOE 2 was, at all relevant times, inside, at, about, in front of and near the aforementioned location with the knowledge, permission, and consent of the defendant NYC and/or NYPD.

48. That on or about September 24, 2017, defendant JOHN DOE 2 was, at all relevant times, inside, at, about, in front of and near the aforementioned location at the behest and direction of the defendant NYC and/or NYPD.

49. That on or about September 24, 2017, defendant JOHN DOE 2 was one of the arresting officers/personnel of defendant NYC and/or NYPD who arrested plaintiff at or near the aforesaid location.

50. That on or about September 24, 2017, while plaintiff was lawfully at the aforesaid location, defendant JOHN DOE 2 without justification, cause or provocation, willfully, wantonly, maliciously and unlawfully assaulted and struck plaintiff both before and after he was placed in handcuffs and posed no danger to himself or others, causing bilateral wrist grooves; left hand numbness and tingling; lacerations with resultant scarring and bruising, concussion, causing permanent personal injuries to the plaintiff.

51. The assaults of JOHN DOE 2 on plaintiff as aforesaid were excessive, malicious, wanton and reckless and were intended to cause severe physical and emotional harm

to plaintiff.

52. By reason of the foregoing, the plaintiff PATRICK SANDER was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and plaintiff has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue plaintiff's usual duties with the same degree of efficiency as prior to this occurrence all to plaintiff's great damage.

53. By reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

54. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

55. That this is an action which involves the doctrine of respondeat superior.

56. That the defendant NYC was the employer of the defendant NICHOLAS SANTOMERO, and as such defendant NYC is vicariously liable for the acts of defendant NICHOLAS SANTOMERO.

57. That the actions of the defendant NICHOLAS SANTOMERO were performed within the scope of employment with the defendant NYC; at the defendant NYC's permission,

behest, and direction; and the defendant NICHOLAS SANTOMERO did not exceed the scope of that permission, behest, and direction.

58. That the defendant NYC was the employer of the defendant JOHN DOE 1, and as such defendant NYC is vicariously liable for the acts of defendant JOHN DOE 1.

59. That the actions of the defendant JOHN DOE 1 were performed within the scope of employment with the defendant NYC; at the defendant NYC's permission, behest, and direction; and the defendant JOHN DOE 1 did not exceed the scope of that permission, behest, and direction

60. That the defendant NYC was the employer of the defendant JOHN DOE 2, and as such defendant NYC is vicariously liable for the acts of defendant JOHN DOE 2.

61. That the actions of the defendant JOHN DOE 2 were performed within the scope of employment with the defendant NYC; at the defendant NYC's permission, behest, and direction; and the defendant JOHN DOE 2 did not exceed the scope of that permission, behest, and direction

62. That a result of the aforesaid, the plaintiff PATRICK SANDER was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and plaintiff has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue plaintiff's usual duties with the same degree of efficiency as prior to this occurrence; plaintiff's health was impaired;

plaintiff suffered great mental distress; plaintiff's reputation and character were injured; plaintiff's earning power has been permanently impaired, all to the plaintiff's damage in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

63. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

64. Claimant was falsely arrested, maliciously prosecuted, imprisoned and forced to be present in Court; and that there was no merit (no probable cause) to the continuance of the imprisonment and prosecution and that such imprisonment and prosecution were malicious and illegal.

65. NYC and/or NYPD, were careless, reckless, and negligent in that they, their employees, agents, servants and/or licensees failed to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ; in using excessive and or deadly force upon the claimant for a violation of possessing marijuana which was not lit where the claimant did not pose any danger to either the police or the public, and / or who did not try to escape; in failing to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ as police officers, detectives, and supervisory officers with regard to the reasonable and prudent use of arrest procedures for marijuana arrests; in specifically training those persons in its employ as police officers, detectives, and supervisory officers, via the patrolman's guide that marijuana users are to be treated as dangerous criminals, when there is no basis in fact for such a representation; in wrongfully, willfully and maliciously refusing to release claimant from his unlawful confinement with careless, reckless, wanton and malicious disregard of claimant's Constitutional rights; in failing to properly and adequately

hire, screen, train, instruct, supervise, manage and control those persons in its employ as police officers, detectives, and supervisory officers with regard to using reasonable force to effect an arrest for a minor offence / violation, the reasonable performance of a criminal investigation; in negligently, recklessly, and carelessly allowing its employees, agents, servants and/or licensees to perform their duties with knowledge of their lack of fitness due to mental, emotional and psychological defects and past experiences prior to and during instances of wrongful, improper, and reckless instances of police misconduct; in failing to institute and promote a reasonable and adequate system to identify, discipline and remove from service, those officers, detectives and supervisory officers whose acts and conduct are wrongful, improper and reckless; in failing to properly hire, screen, train, instruct, and supervise its employees to approach, chase and attempt to apprehend persons suspected of engaging in criminal activity; in failing to properly and adequately hire, screen, train, instruct, supervise, manage and control those persons in its employ as police officers, detectives, and supervisory officers with regard to conducting criminal investigation; in compelling police officers, detectives, and supervisory officers to perform their duties for which they were not properly and adequately trained; in failing to promulgate, propound, teach, instruct, advise and distribute proper and adequate safety rules, procedures, and guidelines with regard to the safe and proper exercise of the duties of its police officers, detectives and supervisory officers, including the apprehension of individuals, arrest procedures and/or performing criminal investigations; in failing to take reasonable measures to insure that police officers, detectives, and supervisory officers were fully and properly familiar with and abided by the rules, procedures, and guidelines; in failing to sufficiently, properly and adequately train, teach, instruct and supervise its police officers, detectives and supervisory officers in the standards to be used for arrests and the performance of a criminal investigation; in being negligent, reckless and careless in the investigation of the occurrence; in being negligent, reckless and careless in the gathering and maintenance of pertinent facts and relevant information pertaining to the occurrence; defendants, their agents, servants, employees and/or licensees negligently, carelessly, and recklessly allowed claimant to be physically detained,

falsely arrested, verbally abused, physically assaulted and deprived of his civil rights; defendants, their agents, servants, employees and/or licensees were negligent in the use of unbridled discretion in the false arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of claimant; in negligently failing to guard against the false arrest, verbal abuse, physical detention and deprivation of the civil rights of members of the public, including claimant; in recklessly and negligently allowing the physical assault of the claimant; in arresting claimant without a warrant; in continuing to detain claimant after defendants learned of or should have learned of the unlawfulness, falsity and lack of probable cause for claimant's imprisonment; in allowing the life and safety of claimant to be unreasonably placed in jeopardy while falsely imprisoned; in failing to protect the life and safety of claimant while falsely imprisoned; in willfully, wantonly, and maliciously arresting, physically detaining, verbally and physically abusing and depriving the civil rights of claimant; the intentional use of unbridled discretion in the arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of claimant; in failing to guard against the arrest, verbal abuse, physical assault, physical detention and deprivation of the civil rights of members of the public, including claimant; in exercising the use of police power and authority such that claimant was physically assaulted, abused and detained, falsely arrested, verbally abused and deprived of his civil rights; in failing to act with reasonable prudence in the use of police power and authority so as to avoid the improper arrest, assault, abuse and detention of innocent persons; in physically assaulting claimant; in knowingly arresting claimant without a warrant; in forcibly detaining, falsely arresting and depriving claimant of his freedoms and constitutional and civil rights while acting in the scope of their authority and within the scope and in the furtherance of their employment; in knowingly violating, consciously ignoring and failing to adhere to and properly follow guidelines and standards; in knowingly failing to exercise due care and proper professional judgment under the circumstances then and there prevailing at the time of the occurrence; in continuing to detain claimant after defendants learned of or should have learned of the unlawfulness, falsity and lack of probable cause for claimant's arrest, prosecution and

imprisonment; in allowing the life and safety of claimant to be unreasonably placed in jeopardy while imprisoned; in failing to protect the life and safety of claimant while imprisoned; in permitting the wrongful, willful, malicious and grossly negligent verbal abuse and physical assault, physical detention and deprivation of the civil rights of the claimant without probable cause for the means of harassment of claimant; in deliberately, intentionally, maliciously, willfully harassing claimant; in deliberately, intentionally, maliciously, willfully and with gross negligence physically and forcibly detaining, verbally abusing, physically assaulting, beating, punching, kicking and battering the claimant while the claimant's hands were in handcuffs; in depriving claimant of his freedoms and constitutional and civil rights while acting in the scope of their authority and within the scope and in the furtherance of their employment; in intentionally failing to act with reasonable prudence to prevent the physical assault, battery, detention and deprivation of the civil rights of claimant; in intentionally violating and failing to adhere to and properly follow guidelines and standards used; in willfully, intentionally, and wantonly violating and failing to adhere to and properly follow good and accepted guidelines and standards of police work then and there prevailing at the time of the occurrence.

66. That the defendants NYC, NICHOLAS SANTOMERO, JOHN DOE 1 AND JOHN DOE 2, the NYPD, their agents, servants, and/or employees caused and created the foregoing conditions intentionally.

67. That as a result of the foregoing, plaintiff's health was impaired; plaintiff suffered great mental distress; plaintiff's reputation and character were injured; plaintiff's earning power has been permanently impaired, all to the plaintiff's damage in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF PATRICK SANDER

68. The plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing cause of action with the same force and effect as if more fully and completely set forth at length below.

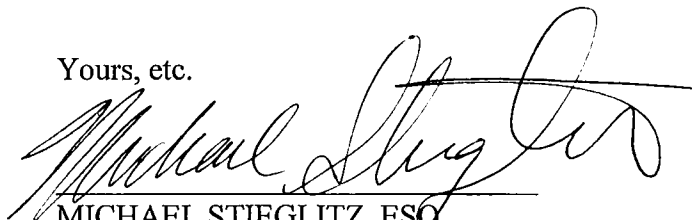
69. That the defendants violated plaintiff' s legal, Constitutional and Civil rights as a result of the foregoing false arrest, false imprisonment, and malicious prosecution assault and battery of the plaintiff.

70. That a result of the violation of the plaintiff' s legal, Civil and Constitutional rights, plaintiff's health was impaired; plaintiff suffered physical injury and great mental distress; plaintiff' s reputation and character were injured; plaintiff' s earning power has been permanently impaired, all to the plaintiff's damage in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff PATRICK SANDER demands judgment against the Defendants CITY OF NEW YORK, NICHOLAS SANTOMERO, JOHN DOE 1 and JOHN DOE 2, being the fictitious name of Police Officers of the New York City Police Department an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction together with the interest, costs, and disbursements of this action.

Dated: Westchester, New York
July 20, 2018

Yours, etc.

A handwritten signature in black ink, appearing to read "Michael Stieglitz", is written over a horizontal line.

MICHAEL STIEGLITZ, ESQ.
SCOTT BARON & ASSOCIATES, P.C.
Attorneys for Plaintiff(s)
PATRICK SANDER
159-49 Cross Bay Boulevard
Howard Beach, NY 11414
(718) 738-9800
Our File No.: 17-10750

INDIVIDUAL VERIFICATION

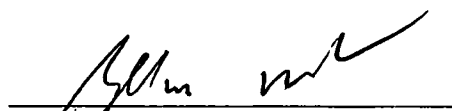
STATE OF NEW YORK)
) SS:
COUNTY OF WESTCHESTER)

PATRICK SANDER being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing VERIFIED COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



PATRICK SANDER

Sworn to before me this
20 day of July, 2018



NOTARY PUBLIC

BLONDELL J. VICTOR
Notary Public - State of New York
No. 01VI6246725
Qualified in Kings County
My Commission Expires August 15, 2019

File No.: 17-10750

Index No.:

***SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX***

PATRICK SANDER

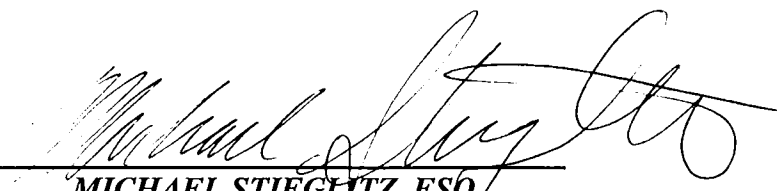
Plaintiff(s)

-against-

***CITY OF NEW YORK, NICHOLAS SANTOMERO, JOHN DOE 1 AND
JOHN DOE 2 being the fictitious names of Police Officers of the New York
City Police Department,***

Defendant(s)

SUMMONS WITH VERIFIED COMPLAINT



***MICHAEL STIEGLITZ, ESQ.
SCOTT BARON & ASSOCIATES, P.C.
Attorney for Plaintiff(s)
159-45 Cross Bay Boulevard
Howard Beach, New York 11414
(718) 738-9800***